

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
OBIOZOR ANAZONWU,

Claimant,

-against-

AMENDED COMPLAINT
(Jury Trial Demanded)

CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
JAMES MARTES, SHIELD No. 717, SERGEANT
THIERRY PRESUME, SHIELD No. 5221,
SERGEANT ODALIZA ALCANTARA SHIELD
No. 813, and POLICE and/or PEACE OFFICERS
JOHN DOE Nos. 1-10 and/or JANE ROE Nos. 2-10
(whose names and shield/tax nos. are unknown at this time)
ALL OF THE MANHATTAN TRAFFIC TASK FORCE
(presently known as the Traffic Operations District-City
Wide Traffic Task Force (CTTF), or BUS UNIT or
TRANSPORTATION BUREAU or OTHER PRECINCTS,

15 CV 01728

Respondents.

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Plaintiff OBIOZOR ANAZONWU by his attorney Rochelle S. Berliner for his amended
complaint, alleges as follows:

INTRODUCTION

1. Plaintiff Obiozor Anazonwu brings this action, pursuant to 42 U.S.C. § 1983, to redress the deprivation of his federal constitutional rights. More specifically, on or about March 17, 2014, at approximately 11:00 a.m., defendants, each of whom was a member of the New York City Police Department (“NYPD”), engaged in the false arrest, unlawful imprisonment,

and the violation of First Amendment rights of Mr. Anazonwu using excessive force.

2. Having obtained a favorable termination of his criminal prosecution, Mr. Anazonwu brings suit to redress these aspects of the violation of his federal and state constitutional rights.

JURISDICTION AND VENUE

3. Pursuant to 28 U.S.C. §§ 1331 and 1343, jurisdiction is proper as Mr. Anazonwu's claims arise under federal law. Pursuant to 28 U.S.C. § 1367, jurisdiction is proper as to the claims of Mr. Anazonwu arise under the common law of the State of New York.

4. Pursuant to 28 U.S.C. § 1391(b), venue is proper as a substantial part of the events or omissions giving rise to Mr. Anazonwu's claims occurred in Manhattan.

PARTIES

5. Mr. Anazonwu resides in the State of New York, Kings County.

6. Defendant Police Officer James Martes ("Defendant Martes") was, at all times relevant herein, a member of the NYPD. Upon information and belief, at all times relevant herein, he was assigned to the Manhattan Traffic Task Force or Bus Unit.

7. Upon information and belief, Defendant Martes is still a member of the NYPD. At all times relevant herein, he was acting within the scope of his employment and under color of law.

8. Defendant Sergeant Thierry Presume ("Defendant Presume") was, at all times relevant herein, a member of the NYPD. Upon information and belief, at all times relevant

herein, he was assigned to the Transportation Bureau.

9. Upon information and belief, Defendant Presume is still a member of the NYPD. At all times relevant herein, he was acting within the scope of his employment and under color of law.

10. Defendant Sergeant Odaliza Alcantara (“Defendant Alcantara”) was, at all times relevant herein, a member of the NYPD. Upon information and belief, at all times relevant herein, she was assigned to the Transportation Bureau.

11. Upon information and belief, Defendant Alcantara is still a member of the NYPD. At all times relevant herein, she was acting within the scope of her employment and under color of law.

12. Defendant Police Officers John Does and/or Police Officers or Sergeant Jane Roes Nos. 1-10 (“Defendants Does and/or Roes Nos. 1-10”) were, at all times relevant herein, members of the NYPD. Upon further information and belief, at all times relevant herein, they were assigned to the Manhattan Traffic Task Force (presently known as the Traffic Operations District-City Wide Traffic Task Force (CTTF), or other precincts.

13. Upon information and belief, Defendants Does and/or Roes Nos. 1-10 are still members of the NYPD. At all times relevant herein, they were acting within the scope of their employment and under color of law.

14. Defendant City of New York (“Defendant City”) is a municipal corporation organized pursuant to the laws of the State of New York. It has all the powers vested in it by the

laws of the State of New York, the City of New York and the Charter of the City of New York. At all times relevant herein, it was the employer of the individually named defendants.

ADMINISTRATIVE PREREQUISITES

15. On June 13, 2014, Mr. Anazonwu filed a timely Notice of Claim with Defendant City in the Office of the City Comptroller, in accordance with the General Municipal Law, concerning his arrest and subsequent prosecution.

16. At least thirty days have elapsed since Mr. Anazonwu filed this Notice of Claim and adjustment or payment thereof has been neglected or refused. This action is commenced within one year and 90 days from the date of the occurrences alleged herein, as required under Section 50-i of the General Municipal Law.

17. A 50-h hearing was held on October 9, 2014.

FACTS UNDERLYING THE COMPLAINT

18. At a time approximately between 10:00 a.m. and 11:00 a.m. on March 17, 2014, Mr. Anazonwu, a yellow taxicab driver, picked up a passenger at or near 79th Street and Second Avenue in New York County.

19. The passenger asked to be taken to Columbus Avenue.

20. Mr. Anazonwu drove towards the destination, intending to cross Central Park at 79th Street.

21. Due to the St. Patrick's Day Parade, the road entrances, specifically the 79th Street Transverse in Central Park, were closed.

22. Mr. Anazonwu informed his passenger that he was going to alter his route to cross over to the west side via 57th Street, and proceeded to do so.

23. En route to 57th Street, the road was blocked due to the parade.

24. Mr. Anazonwu then suggested going up Madison Avenue towards 77th Street so that the passenger could be dropped off at Fifth Avenue in order to be able to cross Central Park by foot, to which the passenger agreed.

25. When Mr. Anazonwu reached 77th Street and Madison Avenue, he noticed the interior light of the taxicab go on, indicating that the passenger had opened the taxicab door while the taxicab was still moving.

26. Concerned for the passenger's safety, Mr. Anazonwu stopped his cab and said in sum and substance, "What are you doing?" and "You're going to hurt yourself," to which the passenger replied, "Drop me here" and "Let me out."

27. Because there was a city bus honking its horn behind him, Mr. Anazonwu moved over to the next block, crossing the intersection while careful that his cab was not blocking the box; the passenger was still holding onto the open door.

28. When Mr. Anazonwu came to a complete stop, the passenger exited the cab.

29. Immediately thereafter, Defendant Martes approached Mr. Anazonwu, yelling, in sum and substance, "Obstructing!" and "Pull over there!"

30. Mr. Anazonwu questioned Defendant Martes, asking in sum and substance, "What have I done?"

31. Mr. Anazonwu then explained to Defendant Martes that there was an emergency and that while he was moving, the last passenger opened the door and he was forced to stop.

32. Defendant Martes responded, "I don't want to know."

33. Defendant Martes then asked for Mr. Anazonwu's Rate Card.

34. Mr. Anazonwu's Rate Card and Hack License are kept behind the driver's seat, so Mr. Anazonwu reached behind him, took them out, and gave them to Defendant Martes

35. Defendant Martes threw the cards into the taxicab and then asked for Mr. Anazonwu's driver's license.

36. Mr. Anazonwu attempted to take out his DMV driver's license, which was inside his pants pocket.

37. Defendant Martes then opened the driver's side door and pulled Mr. Anazonwu out of the taxicab.

38. Defendant Martes slammed Mr. Anazonwu facedown, causing Mr. Anazonwu's chest, face, and legs to hit the ground with great force.

39. Mr. Anazonwu felt chest pain and bleeding from his rectum and cried out, "I'm bleeding, I'm bleeding!"

40. Defendant Officers John Doe No. 1 and Defendant Presume approached, and Mr. Anazonwu was then handcuffed.

41. Defendant Alcantara was present, but did not touch Mr. Anazonwu at that time.

42. Defendant Martes and/or Defendant John Doe No. 1 and Defendant Presume

pulled Mr. Anazonwu up from the ground.

43. Defendant Martes and/or Defendant John Doe No. 1 and Defendant Presume searched Mr. Anazonwu and took everything in Mr. Anazonwu's pockets, including his wallet.

44. Mr. Anazonwu was then taken to a precinct in an unmarked police car which was driven by Defendant Alcantara.

45. At the precinct, Mr. Anazonwu was placed in a cell.

46. Mr. Anazonwu again complained of bleeding and chest pains.

47. Mr. Anazonwu was permitted to go to the bathroom, where he confirmed that he was indeed bleeding from his rectum.

48. No medical attention was offered, but Mr. Anazonwu was offered water or a soft drink.

49. When it finally came time for Mr. Anazonwu to be processed, including being fingerprinted and photographed, Defendant Martes asked, in sum and substance, "What happened?"

50. Mr. Anazonwu explained again that he was forced to stop because his passenger was about to get out of the taxicab while it was still moving.

51. Defendant Martes told Mr. Anazonwu that he didn't hear him and that if he knew that, he would not have brought Mr. Anazonwu to the precinct.

52. After Mr. Anazonwu was processed, he was taken back to the cell, where he remained for approximately five to seven hours before being transported to Central Booking.

53. When Mr. Anazonwu arrived at Central Booking, he was asked by Officer John Doe No. 2 if he was having medical problems, to which Mr. Anazonwu replied that he was experiencing chest pains and bleeding.

54. Officer John Doe No. 2 ordered Mr. Anazonwu to be taken to the hospital immediately.

55. Mr. Anazonwu's hands and legs were shackled, causing severe pain in both legs.

56. Mr. Anazonwu was then transported to Bellevue Hospital in a marked police car.

57. When Mr. Anazonwu arrived at the Emergency Room at Bellevue Hospital, he told the doctors he was experiencing chest pain and bleeding, and described the police incident that caused these symptoms.

58. Mr. Anazonwu received a "CAT scan," a sonogram, and an electrocardiogram (EKG).

59. Mr. Anazonwu was admitted to the hospital, where he stayed for four days, and was treated for his injuries.

60. During the first three days, Mr. Anazonwu's hands and legs were shackled to the hospital bed, forcing him to lie down on his side which resulted in pain in his back and joints.

61. Mr. Anazonwu was not permitted to use the bathroom without a police officer present.

62. On March 19, 2014, Mr. Anazonwu was arraigned through a remote TV screen while still in the hospital, charged with Resisting Arrest under Penal Law § 205.30, Disorderly

Conduct under Penal Law § 240.20(2) and Disorderly Conduct under Penal Law § 240.20(5). He was released on his own recognizance.

63. Mr. Anazonwu was discharged from the hospital on March 20, 2014.

64. Mr. Anazonwu's criminal case was resolved with an Adjournment in Contemplation of Dismissal (ACD) with community service on June 30, 2014, after making one other prior court appearance on May 15, 2014.

65. After returning to court in September, 2014, to show that he successfully completed his community service, Mr. Anazonwu's case was dismissed on December 29, 2014.

66. As a result of this incident, Mr. Anazonwu was hospitalized for approximately four days, three of which he was shackled and in police custody, and additionally appeared in court approximately three times.

67. As a result of this incident, Mr. Anazonwu missed approximately one week of work and when he finally did resume working, he could not maintain the level of income he had prior to this police incident due to his injuries.

68. As a result of this incident, Mr. Anazonwu's physical injuries include a cardiac contusion, rectal bleeding, high blood pressure, and back and joint pain. Mr. Anazonwu continues to be treated for his injuries, including taking various medications and wearing a leg brace.

69. As a result of this incident, Mr. Anazonwu also suffered and continues to suffer from stress, anxiety, depression, fear and mistrust of police, memory loss, and insomnia, for

which he sees a psychiatrist and for which he also takes medication.

AS AND FOR A FIRST CAUSE OF ACTION
(Deprivation of Rights under 42 U.S.C. § 1983)

70. Plaintiff OBIOZOR ANAZONWU repeats and re-alleges the allegations contained in paragraphs 1 through 69 as if fully set forth herein.

71. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of state law.

72. All of the aforementioned acts deprived Plaintiff Obiozor Anazonwu the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

73. The acts complained of were carried out by the aforementioned defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

74. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

75. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

AS AND FOR A SECOND CAUSE OF ACTION

(Deprivation of Substantive Due Process under 42 U.S.C. § 1983)

76. Plaintiff OBIOZOR ANAZONWU repeats and re-alleges the allegations contained in paragraphs 1 through 75, as if fully set forth herein.

77. The defendants' conduct herein was an abuse of executive power so clearly unjustified by any legitimate objective of law enforcement as to be barred by the Fourteenth Amendment.

78. As a result of the foregoing, Plaintiff Obiozor Anazonwu was deprived of his liberty and right to substantive due process, causing severe emotional and psychological harm.

AS AND FOR A THIRD CAUSE OF ACTION
(First Amendment Retaliation under 42 U.S.C. § 1983)

79. Plaintiff OBIOZOR ANAZONWU repeats and re-alleges the allegations contained in paragraphs 1 through 78, as if fully set forth herein.

80. At all times relevant herein, Mr. Anazonwu was inside of his taxicab in heavy traffic and compliant with Defendant Martes' requests. His questioning of police and other speech were obviously protected by the First Amendment, and no reasonably competent police officer would believe otherwise.

81. Indeed, the Supreme Court has recognized that "[t]he First Amendment protects a significant amount of verbal criticism and challenge *directed at* police officers." *City of Houston v. Hill*, 482 U.S. 451, 461 (1997) (emphasis added).

82. On March 17, 2014, Mr. Anazonwu was engaging in a constitutionally protected activity, to wit, questioning Defendant Martes and other speech. Apparently, because Defendant

Martes found Mr. Anazonwu's questioning of police to be offensive, he and other Defendant officers retaliated against him by pulling Mr. Anazonwu out of the taxicab, slamming him to the ground, and arresting him, causing Mr. Anazonwu to be prosecuted on trumped up charges which were based on Defendant Martes' knowingly false statements.

83. In so doing, Defendant Martes, and/or Defendant Alcantara, and/or Defendant Presume and/or Defendants John Does No. 1, under color of state law, deprived Mr. Anazonwu of his rights, privileges and immunities secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, including but not limited to deprivation of the following constitutional rights: (a) freedom from unreasonable seizure of his person, including but not limited to false arrest and false imprisonment; (b) freedom from interference with activity protected by the First Amendment; (c) freedom from retaliatory arrest; (d) freedom from retaliatory prosecution; and (e) freedom from abuse of process.

84. As a result of the individual defendants' conduct, Mr. Anazonwu's First Amendment Right to Free Speech was violated.

85. Consequently, Mr. Anazonwu suffered physical and psychological injury and continues to suffer physical and psychological injury.

**AS AND FOR A FOURTH CAUSE OF ACTION
(False Arrest under 42 U.S.C. § 1983)**

86. Plaintiff OBIOZOR ANAZONWU repeats and re-alleges the allegations contained in paragraphs 1 through 85, as if fully set forth herein.

87. On March 17, 2014, one or more of the individual defendants placed handcuffs on

and detained Plaintiff Obiozor Anazonwu.

88. Defendants did not have probable cause to believe that Mr. Anazonwu had committed any crime. Put simply, Mr. Anazonwu did not engage in any conduct that warranted his arrest and detention.

89. Because the individual defendants did not have probable cause to believe that Mr. Anazonwu had committed a crime, his detention was unreasonable within the meaning of the Fourth and Fourteenth Amendments to the United States Constitution.

90. As a result of his detention by the individual defendants, Mr. Anazonwu's liberty was restricted for an extended period of time. Mr. Anazonwu suffered physical and psychological injury, and continues to suffer physical and psychological injury.

AS AND FOR A FIFTH CAUSE OF ACTION
(Unlawful Imprisonment under 42 U.S.C. § 1983)

91. Plaintiff OBIOZOR ANAZONWU repeats and re-alleges the allegations contained in paragraphs 1 through 90, as if fully set forth herein.

92. As a result of the individual defendants' conduct, Mr. Anazonwu was detained at the precinct and at the hospital, and at all times he knew he was detained. Moreover, Mr. Anazonwu did not consent to his confinement.

93. As the behavior of Mr. Anazonwu provided no justification for these defendants' conduct, the defendants' actions were unreasonable within the meaning of the Fourth and Fourteenth Amendments to the United States Constitution.

94. As a result of defendants' conduct, Mr. Anazonwu suffered loss of freedom,

physical and psychological injury, and continues to suffer physical and psychological injury.

AS AND FOR A SIXTH CAUSE OF ACTION
(Excessive Force under 42 U.S.C. § 1983)

95. Plaintiff OBIOZOR ANAZONWU repeats and re-alleges the allegations contained in paragraphs 1 through 94, as if fully set forth herein.

96. The level of force employed by defendants was excessive, objectively unreasonable and otherwise in violation of Mr. Anazonwu's constitutional rights.

97. As a result of the aforementioned conduct of defendants, Mr. Anazonwu was subjected to excessive force and sustained physical injuries and psychological injuries.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Failure to Intervene under 42 U.S.C. § 1983)

98. Plaintiff OBIOZOR ANAZONWU repeats and re-alleges the allegations contained in paragraphs 1 through 97, as if fully set forth herein.

99. Defendants had an affirmative duty to intervene on behalf of Plaintiff Obiozor Anazonwu, whose constitutional rights were being violated in their presence by Defendant Martes and other officers.

100. The defendants failed to intervene to prevent the unlawful conduct described herein.

101. As a result of the foregoing, Mr. Anazonwu suffered loss of freedom, physical and psychological injury, and continues to suffer physical and psychological injury.

AS AND FOR A EIGHTH CAUSE OF ACTION
(Supervisory Liability under 42 U.S.C. § 1983)

102. Plaintiff OBIOZOR ANAZONWU repeats and re-alleges the allegations contained in paragraphs 1 through 101, as if fully set forth herein.

103. The supervisory defendants personally caused Plaintiff Obiozor Anazonwu constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly supervise and train their subordinate employees.

AS AND FOR AN NINTH CAUSE OF ACTION
(Deprivation of Rights Under the New York State Constitution)

104. Plaintiff OBIOZOR ANAZONWU repeats and re-alleges the allegations contained in paragraphs 1 through 103, as if fully set forth herein.

105. By the actions described above, the individual defendants unlawfully arrested and detained Mr. Anazonwu, and used unnecessary and excessive force not reasonably justified by any circumstances and used for no proper purpose, thereby violating Mr. Anazonwu's rights secured by Article 1, Section 6 of the New York State Constitution.

106. As a consequence thereof, Plaintiff Obiozor Anazonwu has been injured.

AS AND FOR A TENTH CAUSE OF ACTION
(False Arrest Under State Law)

107. Plaintiff OBIOZOR ANAZONWU repeats and re-alleges the allegations contained in paragraphs 1 through 106, as if fully set forth herein.

108. On March 17, 2014, one or more of the individual defendants placed handcuffs on and detained Mr. Anazonwu.

109. Defendants did not have probable cause to believe that Mr. Anazonwu had

committed any crime. Put simply, Mr. Anazonwu did not engage in any conduct that warranted his arrest and detention and there was no legal justification for his arrest.

110. As a result of his arrest and subsequent detention by the individual defendants, Mr. Anazonwu's liberty was restricted for an extended period of time without probable cause. Mr. Anazonwu suffered physical and psychological injury, and continues to suffer physical and psychological injury.

111. The individual defendants were agents of Defendant City and were at all relevant times acting within the scope of their employment.

112. As the employer of the individual defendants, Defendant City is responsible for Mr. Anazonwu's injuries under the doctrine of *respondeat superior*.

AS AND FOR A ELEVENTH CAUSE OF ACTION
(Unlawful Imprisonment Under State Law)

113. Plaintiff OBIOZOR ANAZONWU repeats and re-alleges the allegations contained in paragraphs 1 through 112, as if fully set forth herein.

114. On March 17, 2014, as a result of the individual defendants' conduct, Mr. Anazonwu was detained in a cell at the precinct and later shackled to a hospital bed for approximately three days.

115. Because these defendants did not have probable cause to believe that Mr. Anazonwu had committed a crime, no legal justification existed for his arrest and detainment.

116. The confinement of Mr. Anazonwu was not otherwise privileged.

117. Mr. Anazonwu was conscious of said confinement and did not consent to same.

118. As a result of the foregoing, Mr. Anazonwu was falsely imprisoned and his liberty was restricted for an extended period of time. Mr. Anazonwu suffered loss of freedom, physical and psychological injury, and continues to suffer physical and psychological injury.

119. The individual defendants were agents of Defendant City and were at all relevant times acting within the scope of their employment.

120. As the employer of the individual defendants, Defendant City is responsible for Mr. Anazonwu's injuries under the doctrine of *respondeat superior*.

AS AND FOR A TWELFTH CAUSE OF ACTION
(Abuse of Process Under State Law)

121. Plaintiff OBIZOR ANAZONWU repeats and realleges the allegations contained

in paragraphs 1 through 120, as if fully set forth herein.

122. On March 17, 2014, Defendant Martes and one or more of the individual defendants, without excuse or legal justification, and with malice in retaliation for Mr. Anazonwu's speech, used the criminal process to arrest, assault, and prosecute Mr. Anazonwu.

123. The individual defendants used the criminal process in a perverted manner to obtain a collateral objective, to wit, in order to prevent Mr. Anazonwu from questioning police conduct.

124. During this incident, Mr. Anazonwu complied with every police directive including giving Defendant Martes his Rate Card and Hack License and attempting to take out his DMV driver's license.

125. After slamming Mr. Anazonwu to the ground during the arrest, Defendant Martes then falsely charged Mr. Anazonwu.

126. The individual defendants were agents of Defendant City and were at all relevant times acting within the scope of their employment.

127. As the employer of the individual defendants, Defendant City is responsible for Mr. Anazonwu's injuries under the doctrine of *respondeat superior*.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
(Assault under State Law)

128. Plaintiff OBIOZOR ANAZONWU repeats and re-alleges the allegations contained in paragraphs 1 through 127, as if fully set forth herein.

129. By reason of the foregoing, the defendants placed Mr. Anazonwu in apprehension

of imminent harmful and offensive contact, thereby committing an assault.

130. As a consequence thereof, Plaintiff Obiozor Anazonwu has been injured.

131. The individual defendants were agents of Defendant City and were at all relevant times acting within the scope of their employment.

132. As the employer of the individual defendants, Defendant City is responsible for the injuries Mr. Anazonwu suffered and continues to suffer as a result of the conduct of the individual defendants pursuant to the doctrine of *respondeat superior*.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION
(Battery under State Law)**

133. Plaintiff OBIOZOR ANAZONWU repeats and re-alleges the allegations contained in paragraphs 1 through 132, as if fully set forth herein.

134. By reason of the foregoing, the individual defendants unreasonably struck Mr. Anazonwu in a harmful and offensive manner, thereby committing a battery.

135. As a consequence thereof, Plaintiff Anazonwu has been injured.

136. The individual defendants were agents of Defendant City and were at all relevant times acting within the scope of their employment.

137. As the employer of the individual defendants, Defendant City is responsible for the injuries Mr. Anazonwu suffered and continues to suffer as a result of the conduct of the individual defendants pursuant to the doctrine of *respondeat superior*.

**AS AND FOR A FIFTEENTH CAUSE OF ACTION
(Negligent Hiring and Retention under State Law)**

138. Plaintiff OBIOZOR ANAZONWU repeats and re-alleges the allegations contained in paragraphs 1 through 137, as if fully set forth herein.

139. Upon information and belief, Defendant City failed to use reasonable care in the hiring and retention of the aforesaid defendants who conducted and participated in the arrest of Mr. Anazonwu.

140. Defendant City knew, or should have known in the exercise of reasonable care, the propensities of Defendant Martes, Defendant Alcantara, Defendant Presume, and Defendant John Does and/or Jane Roes Nos. 1-10 to engage in the wrongful conduct heretofore alleged in this Complaint.

AS AND FOR A SIXTEENTH CAUSE OF ACTION
(Negligent Training and Supervision under State Law)

141. Plaintiff OBIOZOR ANAZONWU repeats and re-alleges the allegations contained in paragraphs 1 through 140, as if fully set forth herein.

142. Defendant Police Officers owed a duty to act according to the standard of ordinary care of a police officer.

143. Defendant Police Officers breached that duty by failing to act as ordinary police officers would.

144. Upon information and belief, Defendant City failed to use reasonable care in the training and supervision of the aforesaid defendants who conducted and participated in the arrest of Mr. Anazonwu.

145. As a result of the individual defendants' conduct, Plaintiff Obiozor Anazonwu has

been injured.

146. The individual defendants were agents of Defendant City and were at all relevant times acting within the scope of their employment.

147. As the employer of the individual defendants, Defendant City is responsible for the injuries Mr. Anazonwu suffered, and continues to suffer, as a result of the conduct of the individual defendants pursuant to the doctrine of *respondeat superior*.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION
(Intentional Infliction of Emotional Distress under State Law)

148. Plaintiff OBIOZOR ANAZONWU repeats and re-alleges the allegations contained in paragraphs 1 through 147, as if fully set forth herein.

149. One or more of the defendants intentionally and deliberately inflicted emotional distress on Mr. Anazonwu by falsely arresting or unlawfully imprisoning, or using unnecessary excessive force, or by violating his constitutional rights or knew or should have known that emotional distress was the likely result of their conduct.

150. Defendants' conduct was extreme and outrageous, beyond all possible bounds of decency and utterly intolerable in a civilized community.

151. As a result of Defendants' intentional, extreme and outrageous conduct, Mr. Anazonwu was, is, and, with a high degree of likelihood, will continue to be emotionally distressed.

152. The individual defendants were agents of Defendant City and were at all relevant times acting within the scope of their employment.

153. As the employer of the individual defendants, Defendant City is responsible for the injuries Mr. Anazonwu suffered, and continues to suffer, as a result of the conduct of the individual defendants pursuant to the doctrine of *respondeat superior*.

AS AND FOR A EIGHTEENTH CAUSE OF ACTION
(Negligent Infliction of Emotional Distress under State Law)

154. Plaintiff OBIOZOR ANAZONWU repeats and re-alleges the allegations

contained in paragraphs 1 through 153, as if fully set forth herein.

155. One or more of the defendants negligently inflicted emotional distress on Mr. Anazonwu.

156. Defendants had a continuing affirmative duty to perform their duties as police officers in such a manner as not to inflict emotional distress on Mr. Anazonwu.

157. Mr. Anazonwu never interfered with the police officers obligations under the above-described duties.

158. As a result of Defendants' negligent conduct, Mr. Anazonwu was, is, and, with a high degree of likelihood, will continue to be emotionally distressed.

159. The individual defendants were agents of Defendant City and were at all relevant times acting within the scope of their employment.

160. As the employer of the individual defendants, Defendant City is responsible for the injuries Mr. Anazonwu suffered, and continues to suffer, as a result of the conduct of the individual defendants pursuant to the doctrine of *respondeat superior*.

DEMAND FOR A JURY TRIAL

161. Pursuant to Rule 38 of the Federal Rules of Civil Procedure, plaintiff demands a trial by jury on all issues.

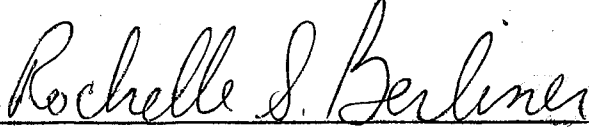
PRAYER FOR RELIEF

WHEREFORE, OBIOZOR ANAZONWU prays for the following relief:

- (a) compensatory damages in an amount to be determined at trial, but no less than \$250,000;
- (b) punitive damages in an amount to be determined at trial;
- (c) reasonable attorneys' fees;
- (d) costs and expenses; and
- (e) such other and further relief as is just and proper.

Dated: Queens, New York
September 27, 2015

ROCHELLE S. BERLINER, ESQ.
Attorney for Plaintiff
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By: 
Rochelle S. Berliner (RB 7463)